SEVENTH DISTRICT COURT
Grand County

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IN THE SEVENTH JUDICIAL DISTRICT COURT IN AND FOR

GRAND COUNTY, STATE OF UTAH

BARBARA A. MORRA; MICHAEL K. SUAREZ; JOHN S. WEISHEIT; HAROLD SHEPHERD; JENNIFER P. SPEERS; TARA COLLINS; WILLIAM LOVE; SARAH M. FIELDS; JOHN C. DOHRENWEND; PAUL JANOS; and STEVE MULLIGAN,

Plaintiffs,

vs.

GRAND COUNTY, UTAH and the GRAND COUNTY COUNCIL,

Defendant;

CLOUDROCK LAND COMPANY LLC, a Utah limited liability company,

Defendant-Intervenor.

CLOUDROCK LAND COMPANY LLC'S COMBINED REPLY MEMORANDUM IN SUPPORT OF ITS MOTION FOR SUMMARY JUDGMENT AND MEMORANDUM IN OPPOSITION TO PLAINTIFFS' CROSS MOTION FOR SUMMARY JUDGMENT

Case No. 070700108

Honorable Lyle R. Anderson

CLOUDROCK LAND COMPANY LLC'S COMBINED REPLY
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Defendant-Intervenor Cloudrock Land Company, LLC ("Cloudrock") replies to Plaintiffs' memorandum in opposition to Cloudrock's motion for summary judgment and opposes Plaintiffs' cross motion for summary judgment, pursuant to Rule 56 of the Utah Rules of Civil Procedure.

I. SUMMARY

The pending motions for summary judgment raise two issues that must be decided by the court. The first issue is whether this court has jurisdiction to hear appeal of Ordinance No. 454, Series 2007 ("Ordinance 454")[1] and the second issue is whether the passage of Ordinance 454 was arbitrary, capricious or illegal. As to the first issue, it is Cloudrock's position that this court does have jurisdiction over the appeal because Ordinance 454 is a land use ordinance under LUDMA.[2] As such, only this court has jurisdiction to hear a challenge to the enactment of a land use ordinance. As for the second issue—whether Ordinance 454 was arbitrary, capricious or illegal—the critical question is, again, whether Ordinance 454 is a legislative enactment. This is because this court must grant substantial deference to a legislative enactment and consider it under a reasonably debatable standard of review.

Ordinance 454 was a legislative decision addressing land use because it approved rezoning of property from range and grazing to planned-unit-development ("PUD") zoning. As a matter of law, zoning decisions are fundamentally legislative acts. Therefore, this court should grant Cloudrock summary judgment and rule that Ordinance 454 is not arbitrary, capricious or illegal. Plaintiffs fail to allege that there is no reasonable debate that Ordinance 454 promotes

[1] Ordinance 454 is attached as Exhibit A to Cloudrock's Memorandum in Support of Motion for Summary Judgment.

[2] LUDMA is an acronym for the County Land Use, Development, and Management Act which was enacted in 2005 and is now codified as Utah Code Ann. §§ 17-27a-101 through -803.

the general welfare and, even if the court could find illegality, Plaintiffs fail to demonstrate prejudice.

Plaintiffs argue that Cloudrock's summary judgment motion is not ripe because Grand County (the "County") has not transmitted a record of the "administrative" proceedings to the court. However, Plaintiffs improperly assume the predicate to their argument—that Ordinance 454 is not a legislative enactment, but is an administrative decision. That is the heart of the issue before the court. Only if the court determines that Ordinance 454 is an administrative land use decision, must the reviewing body determine whether the decision is supported by substantial evidence in the record.[3] If the court agrees with Cloudrock that Ordinance 454 is a legislative action, there is no requirement for the submission of a record because the only question before this court is whether the ordinance is "arbitrary, capricious or illegal." An administrative record is needed only when this court is asked to review actions of a "land use authority" or "appeal authority," not a legislative body.[4] Because Ordinance 454 is a legislative action under LUDMA, the only document the court needs to review to grant Cloudrock summary judgment is Ordinance 454, which incorporated the Amended Master Plan and Preliminary Phase I Plat ("Amended Master Plan") and Amended Development Agreement, which together operated to amend the Johnson's Up-on-Top Planned Unit Development ("Amended PUD").[5] All other documents attached by Cloudrock were provided to inform the court of the history of this case.

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[3] Utah Code § 17-27a-801(3)(c) (2007).
[4] See id. §§ 17-27a-801(3)(c), 17-27a-801(3)(b).
[5] The Amended Development Agreement is attached as Exhibit B to Cloudrock's Memorandum Supporting Motion for Summary Judgment and the Amended Master Plan is attached as Exhibit C to the Memorandum Supporting Cloudrock's Motion for Summary Judgment.

II. STATEMENT OF FACTS

A. Reply to Plaintiffs' Response to Cloudrock's Facts.

In responding to Cloudrock's facts, Plaintiffs make a repeated objection regarding the lack of an "administrative record." As purported authority for the alleged requirement that there must be an administrative record before this court can consider Cloudrock's motion for summary judgment, Plaintiffs give two citations. Both are inapplicable because both assume an issue to be decided—whether Ordinance 454 is an administrative, rather than a legislative, act. The first citation is to Grand County Land Use Code § 7.13.2 (Jan. 2007) ("2007 LUC"). That provision states that an officer should submit a record to the board of adjustment where an appeal is of a decision by an "administrative officer." See id. The Grand County Council's ("Council") enactment of Ordinance 454 is not an act by an administrative officer. The second citation is also inapplicable. Utah Code section 17-27a-801(7)(a) applies only to decisions of a land use authority or appeal authority. Those two bodies make administrative decisions, not legislative ones. Compare Utah Code § 17-27a-801(3)(c) with Utah Code § 17-27a-801(3)(b).

B. Response to Plaintiffs' Factual Statements.

*39. In early March, 2002, a group of Grand County residents appealed the adoption by the County Council of Resolution /#2002-2568. A copy of the 2002 appeal is attached hereto. See **Appendix A** hereto, Morra Decl. ¶ 5 and Exhibit A thereto.*

RESPONSE: Cloudrock does not dispute this fact but affirms that it is not material to the appeal of Ordinance 454 because the appeal of the prior approval occurred years ago and before the enactment of LUDMA.

*40. In April, 2002, the Board of Adjustment held a hearing on the question of the Board's jurisdiction to hear the 2002 appeal. See **Appendix A** hereto, Morra Decl. ¶ 6.*

RESPONSE: Cloudrock does not dispute this fact but affirms that it is not material to the appeal of Ordinance 454 because any prior appeal occurred years earlier.

*41. In May, 2002, the Board of Adjustment held a hearing on the merits of the 2002 appeal. See **Appendix A** hereto, Morra Decl. ¶9.*

RESPONSE: Cloudrock does not dispute this fact but avers that LUDMA was enacted in 2005, and that it deprives the 2002 action of the Grand County Board of Adjustment ("BOA") of precedential effect here. Specifically, LUDMA clarifies that appeals of legislative decisions must be made within thirty days of the enactment of a land use ordinance, defines what is a land use ordinance, and defines the limited jurisdiction of a board of adjustment.

*42. On February 6, 2007, one or more Plaintiffs attended a public hearing held by the County Council on the Johnson's Up-On-Top Mesa Amended Master Plan and Amended Preliminary Phase 1 Plat. See **Appendix A** hereto, Morra Decl. ¶ 10.*

RESPONSE: No dispute.

*43. The County gave notice of the February 6, 2007, public hearing in the form attached hereto. See **Appendix A** hereto. Morra Decl. ¶ 10.*

RESPONSE: No dispute.

*44. To the best of Plaintiff Morra's recollection, a proposed amended zoning map for the Cloudrock Development was not presented at the February 6, 2007, County Council public hearing and a proposed amended zoning map was not discussed at that public hearing. See **Appendix A** hereto, Morra Decl. ¶ 10.*

RESPONSE: Cloudrock denies this claim. Cloudrock submitted a map showing the boundaries of the proposed rezone to the Planning Commission. That boundary map is attached

to Cloudrock's Memo in Support of Summary Judgment ("Cloudrock S.J. Memo") as Exhibit E, on the page marked Exhibit 10. A boundary map is also shown on Sheet 1, attached as Exhibit C to Cloudrock's S.J. Memo.

45. Sometime during the spring or early summer of 2007, Plaintiff Morra received from Plaintiff Suarez a copy of a County Zoning Map (the "Zoning Map") which he had just obtained from Mary Hofhine, the Grand County Zoning and Planning Administrator (the "Zoning Administrator"). A copy of the Zoning Map is attached hereto. See ***Appendix A****, hereto, Morra Decl. ¶ 11 and Exhibit C thereto. The Zoning Map at that time did not reference a PUD for the Cloudrock Development.*

RESPONSE: Cloudrock does not dispute that Ms. Morra and Mr. Suarez requested a zoning map but deny that it is the map that shows the Cloudrock development. Plaintiffs' map shows a small sliver of the Cloudrock development and Cloudrock avers that under the applicable County ordinance, the County Planner was obligated to update the zoning map "promptly after official adoption of the change or amendment." See 2000 Grand County Land Use Code ("2000 LUC"), Art.III.B.2. Exhibit V to Cloudrock's S.J. Memo contains the updated zoning map which shows the Cloudrock development.

46. On or about Friday, April 27, 2007, Plaintiff Morra obtained from the County a copy of the Amended and Restated Johnson's Up-On-Top Mesa Development Agreement (the "Amended Development Agreement") that she was told Cloudrock submitted to the County. A copy of the Amended Development Agreement is attached hereto. See ***Appendix A*** *hereto, Morra Decl. ¶ 13 and Exhibit D thereto.*

RESPONSE: No dispute in that the referenced document is the same as that attached as Exhibit B to the Cloudrock S.J. Memo.

*47. On May 8, 2007, the County Council adopted Ordinance 454. The Amended Development Agreement was approved by Ordinance 454. A copy of ordinance 454 is attached hereto. See **Appendix A** hereto, Morra Decl. ¶ 14 and Exhibit E thereto.*

RESPONSE: No dispute because the referenced ordinance is the same as the one attached as Exhibit A to Cloudrock S.J. Memo.

*48. The Amended Development Agreement, including the Cloudrock Code which is a part thereof, includes accessory facilities and uses for the wilderness lodge use-on-review component of the Cloudrock Development that were not included in the original development agreement dated October 31, 2001, and executed by the County and Cloudrock's predecessor (the "Original Development Agreement"). A copy of the Original Development Agreement is attached hereto. See **Appendix A** hereto, Morra Decl. ¶ 15 and Exhibit F thereto.*

RESPONSE: Cloudrock admits the Amended Development Agreement amended the prior approvals and that those amendments are different than what was approved by the Original Development Agreement. Cloudrock also admits that a copy of the "Original Development Agreement" is attached as indicated and that that document is the same as Exhibit G to Cloudrock S.J. Memo.

*49. Section 1.2.u. of the Original Development Agreement states that the "accessory uses and services provided within the Project shall be in accordance with the requirements of Art. III.C.2.h.(2) of the code." See **Appendix A** hereto, Morra Decl. ¶ 16.*

RESPONSE: No dispute.

50. The code is defined in the Original Development Agreement as the Grand County Land Use Code in effect as of April 2, 2001 (The "Applicable Land Use Code"). See Appendix A hereto, Morra Decl. ¶ 17 and Recital D and Section 1.3 of Exhibit F thereto.

RESPONSE: No dispute as the "Applicable Land Use Code" is attached as an exhibit to

the Development Agreement which is attached as Exhibit B to Cloudrock S.J. Memo.

51. A copy of the Applicable Land Use Code is attached hereto. See ***Appendix A*** *hereto, Morra Decl. ¶ 18 and Exhibit G thereto. Art. III.C.2.h.(2) of the Applicable Land Use Code Provides that "accessory facilities may include a restaurant, gift shop, employee housing, equestrian facilities and spa." Morra Decl. ¶ 18.*

RESPONSE: No dispute as the "Applicable Land Use Code" is attached as an exhibit to the Development Agreement which is attached as Exhibit B to Cloudrock Memo S.J.

52. In contrast to the foregoing, the Amended Development Agreement provides that the Cloudrock Development may include multiple restaurants, multiple gift shops, multiple spa facilities, small retail, civic buildings and offices. See ***Appendix A*** *hereto, Morra Decl. ¶ 19 and Section 1.2.z. of Exhibit D thereto and pages 1 and 2 of the Cloudrock Code which is part of Exhibit D thereto.*

RESPONSE: No dispute and Cloudrock avers that Article II.A.9 clarifies that the singular means the plural and the plural the singular in the 2000 LUC. Also, Article III.R.4 of the 2000 LUC allows the variations described above.

53. In accordance with Section 1.1 of the Original Development Agreement, Cloudrock was permitted to reallocate densities within the Cloudrock Development; provided the overall densities remained the same and modifications to the development were approved following the rules of the Applicable Land Use Code. See ***Appendix A*** *hereto, Morra Decl. ¶ 20 and Exhibit F thereto.*

RESPONSE: No dispute.

54. In accordance with Section 1.2.o. of the Amended Development Agreement, the Cloudrock Code provides for exceptions from the Applicable Land Use Code of otherwise applicable dimensional standards, road designs standards and architectural designs. See ***Appendix A*** *hereto, Morra Decl. ¶ 21 and Exhibit D thereto.*

RESPONSE: No dispute except that Ordinance 454 required that exceptions related to certain road design standards must be obtained through an application for a special exception, which special exception Cloudrock has obtained and Plaintiffs have appealed to the BOA. That matter is currently pending before the BOA.

55. In accordance with the terms of Ordinance 454, the density equivalent of 152 wilderness lodge units was reallocated to 5 village residential units and 70 mesa residential units. See Exhibit E to ***Appendix A*** *hereto.*

RESPONSE: Cloudrock disputes this fact only to explain that Ordinance 454 approved the decrease of 152 wilderness lodge units and the reallocation of that density to 6 village residential units and 70 mesa residential units.

56. Following the adoption of Ordinance 454, Plaintiffs instructed their attorneys to appeal Ordinance 454. Morra Decl. ¶¶ 23, 24, and 25.

RESPONSE: No dispute.

57. Plaintiffs' attorneys contacted Mary Hofhine, the Zoning Administrator, regarding the procedure to be followed in filing an appeal of Ordinance 454. Ms. Hofhine instructed that an appeal should be filed with the Board of Adjustment. Ms. Hofhine provided counsel with the Notice of Appeal form that the County requires to be filed as part of an appeal. See Morra Decl. ¶ 24. A copy of the County's Notice of Appeal form is attached hereto. See ***Appendix A*** *hereto. Morra Decl. ¶ 24 and Exhibit H thereto.*

RESPONSE: No dispute but the action of Ms. Hofhine does not bind the County as there

is no basis for estoppel here, see Plateau Mining Co. v. Utah Div. of State Lands and Forestry, 802 P.2d 720, 728-30 (Utah 1990), Plaintiffs were represented by counsel, and Plaintiffs attorneys did appeal Ordinance 454 within thirty days of enactment as required by LUDMA.

58. Plaintiffs filed an appeal of Ordinance 454 with the Board of Adjustment on June 6, 2007. Morra Decl. ¶ 25.

RESPONSE: No dispute.

*59. A few weeks later, one or more Plaintiffs received a copy of a June 22, 2007, memo which was addressed to the Grand County Attorneys from Cloudrock's counsel ("Cloudrock's June 2007 Memo") asserting that the Board of Adjustment had no jurisdiction to hear Plaintiffs' appeal of Ordinance 454. Morra Decl. ¶ 26. A copy of Cloudrock's June 2007 Memo is attached hereto. See **Appendix A** hereto, Morra Decl. ¶ 26 and Exhibit I thereto.*

RESPONSE: No dispute.

*60. In response to Cloudrock's June 2007 Memo, Plaintiff's attorneys submitted to the County Attorneys a letter dated July 12, 2007 ("Plaintiffs' July 2007 Letter"), in which Plaintiffs' counsel explained that the Board of Adjustment does indeed have jurisdiction to hear Plaintiffs' appeal. A copy of Plaintiffs' July 2007 Letter is attached hereto. See **Appendix A** hereto, Morra Decl. ¶ 27 and Exhibit J thereto.*

RESPONSE: No dispute.

*61. On or about July 27, 2007, one or more Plaintiffs received a copy of Cloudrock's reply in the form of a memorandum dated July 25, 2007, ("Cloudrock's Reply"). Cloudrock reiterated its position that the Board of Adjustment lacks jurisdiction to hear Plaintiffs' appeal of Ordinance 454. A copy of Cloudrock's Reply is attached hereto. See **Appendix A** hereto, Morra Decl. ¶ 28 and Exhibit K thereto.*

RESPONSE: No dispute.

62. Rather than sending a response to Cloudrock's Reply to the County Attorneys, Plaintiffs' attorneys sent a letter dated August 16, 2007, directly to the Board of Adjustment ("Plaintiffs' Letter to Board of Adjustment"), in which Plaintiffs requested that the Board of Adjustment hold a hearing on the issue of its jurisdiction to hear Plaintiffs' appeal and urged the Board to engage independent counsel to advise it on matters related to Plaintiff's appeal. Morra Decl. ¶ 29. A copy of Plaintiffs' Letter to the Board of Adjustment is attached hereto. See ***Appendix A*** *hereto, Morra Decl. ¶ 29 and Exhibit L thereto.*

RESPONSE: No dispute.

63. On or about September 4, 2007, on or more Plaintiffs received a copy of a memorandum addressed to counsel for Plaintiffs and Cloudrock from the County Attorneys (the "County Attorney's Opinion"), in which the County Attorney Morgan (a) stated that she represents both the County Council and the Board of Adjustment and (b) rendered an opinion that the Board lacks jurisdiction to hear Plaintiffs' appeal. The County Attorney's Opinion is attached hereto. See ***Appendix A*** *hereto, Morra Decl. ¶ 30 and Exhibit M thereto.*

RESPONSE: No dispute.

64. In mid-November, 2007, one or more Plaintiffs learned that Ms. Hofhine, the County Zoning Administrator, apparently had informed one or more members of the Board of Adjustment, in connection with the issue of the Board's jurisdiction to hear Plaintiffs' appeal, that Plaintiffs had expressed a preference to proceed directly to District court, by-passing the Board of Adjustment. Plaintiffs. Plaintiffs did not express such a preference. Morra Decl. ¶ 32.

RESPONSE: No basis to dispute.

65. According to its own terms, Ordinance 454 approved the "Johnson's Up-On-Top Preliminary PUD and Master Plan as proposed, and the Amended and Restated Johnson's Up-On-Top Mesa Development Agreement, subject to the terms conditions" stated therein. In addition, Ordinance 454 does not reference, describe or discuss a rezone for the Johnson's Up-On-Top PUD. See Exhibit A to Cloudrock's Memorandum.

RESPONSE: No dispute as to the enactment of Ordinance 454 but Cloudrock disputes the legal conclusion that Ordinance 454 did not effect a rezone. Ordinance 454 states that "the subject property is zoned RG Range and Grazing, and is proposed to be developed as a Planned Unit Development (PUD) in accordance with the requirements of the Code." One of those requirements is found in Art. III R. 3 which states that "Every PUD District approved under the provisions of this Ordinance shall follow the procedure of Art. VI.B, Zoning map and text amendment, and be considered an amendment to the zoning map."

C. Undisputed Facts Material to Issues in Motion and Cross Motion.

1. On May 8, 2007, the Council enacted Ordinance 454. (See Pls.' Am. Compl. ¶ 75, Pls.' Cross Mot. S.J., Statement of Facts ¶ 56.)

2. Plaintiffs John S. Weisheit, Michael K. Suarez and Barbara Morra spoke against the Cloudrock Development at the February 6, 2007 Council public hearing. (See Minutes of Council Meeting, attached as Exhibit Q to Cloudrock Memo S.J.) Plaintiffs Michael K. Suarez and Barbara Morra participated in the Council meeting where the Council set the date for the enactment of Ordinance 454. (See Minutes of Council Meeting, attached as Exhibit S to Cloudrock S.J. Memo; Plaintiffs' response to Fact No. 31, Plaintiffs Cross S.J. Memo, page 22.)

III. ARGUMENT

Cloudrock's Motion for Summary Judgment and Plaintiffs' Cross Motion for Summary Judgment raise two related issues for decision. The first is whether this court has jurisdiction or whether the BOA should have first reviewed Ordinance 454. The second issue is whether the Council's adoption of Ordinance 454 was arbitrary, capricious or illegal. To resolve both issues, the court must first determine whether it is a legislative land use decision or an administrative action. Under LUDMA, legislative decisions are reviewed under a reasonably debatable standard of review while administrative decisions must be supported by substantial evidence in the record. Utah Code § 17-27a-801(3) (2007).

Summary judgment is appropriate when there is no genuine issue of material fact and the moving party is entitled to a judgment as a matter of law. Utah R. Civ. P. 56 (2007); Wilcox v. Anchor Wate, Co., 2007 UT 39, ¶ 10, 164 P.3d 353, 357. When a motion for summary judgment is made, an adverse party "must set forth specific facts showing that there is a genuine issue for trial. Summary judgment, if appropriate, shall be entered against a party failing to file such a response." Utah R. Civ. P. 56(e). LUDMA adds to this standard by imposing upon a party challenging a land use ordinance the obligation to overcome the presumption that a land use ordinance is valid. See Utah Code § 17-27a-801(3)(a) and (b); Utah R. Evid. R. 301(a) (legal presumption imposes on party against whom it is directed burden of proving that nonexistence of presumed fact is more probable than not).

Here, Cloudrock is entitled to summary judgment as a matter of law because: (A) only this court has jurisdiction to review Ordinance 454; (B) Ordinance 454 is a legislative act of the Council; and (C) the Council did not act arbitrarily, capriciously or illegally when it enacted Ordinance 454. The arguments below are not repetitive but each relates to separate, but related, parts of LUDMA and applicable precedent. Section (A) answers the question of jurisdiction,

Section (B) establishes the appropriate standard of review, and Section (C) confirms that Cloudrock is entitled to the affirmative relief it seeks in its motion for summary judgment—namely a declaration that the enactment of Ordinance 454 was legal and not arbitrary and capricious.

A. Only this Court has Jurisdiction to Hear an Appeal of Ordinance 454.

Plaintiffs seek a declaratory judgment that this court lacks jurisdiction to hear the appeal of Ordinance 454 because they claim that Ordinance 454 was an administrative land use decision which must first be appealed to the BOA. (Pls.' Cross Mot. S.J. at 3, 33-46.) Their argument is without merit.

1. Ordinance 454 is a Land Use Ordinance.

LUDMA defines a "land use ordinance" as a "planning, zoning, development, or subdivision ordinance of the county, but does not include the general plan." Utah Code § 17-27a-103(19). As a land use ordinance, any challenge must be filed with the district court within thirty days of enactment. Id. § 17-27a-801(5). Ordinance 454 falls squarely within the definition of a land use ordinance because it approved an Amended Master Plan and an Amended Development Agreement, which together operated to amend the Johnson's Up-on-Top PUD, and both of which relate to zoning, development and subdivisions. Plaintiffs' initiation of this lawsuit within thirty days[6] of Ordinance 454's enactment confirms that they understood that Ordinance 454 is a land use ordinance.

Plaintiffs now argue that Ordinance 454 is not a land use ordinance, but rather a series of applications of the 2000 LUC. (Pls.' Cross Mot. S.J. at 36, 38-40.) Their argument continues that if an ordinance references other ordinances or policy statements it cannot be considered

[6] Plaintiffs filed this suit on June 7, 2007 and the Council enacted Ordinance No. 454 on May 8, 2007.

legislative but becomes administrative. Plaintiffs' arguments must fail because they ignore LUDMA's definition of what constitutes a land use ordinance. LUDMA does not contemplate that some land use ordinances (those that reference other ordinances or matters which if isolated may be administrative) would be appealed to a board of adjustment and other land use ordinances would be appealed directly to court. Rather, it says that appeals of a land use ordinance must go directly to district court within thirty days of enactment. See Utah Code § 17-27a-801(5). The court should decline Plaintiffs' invitation to create two types of land use ordinances where LUDMA provides a clear definition of what is a land use ordinance.

Plaintiffs also argue that because Ordinance 454 refers to the "use on review" and "special exception" applications, which are typically considered administrative, Ordinance 454 is not a land use ordinance. This argument is also unpersuasive. First, Ordinance 454 did not approve a use on review and special exception application; rather it explicitly required Cloudrock to submit such applications in the future. And, in fact, since the enactment of Ordinance 454, Cloudrock has complied with Ordinance 454 and has submitted applications and obtained approvals for two special exceptions and one use on review permit. (The same persons who are plaintiffs here have mounted challenges to those three approvals. These appeals are currently pending before the BOA and are scheduled to be heard in March 2008.)

Second, even if Ordinance 454 could be construed in part to approve a use on review and special exception, that would not mean Ordinance 454 is something other than a land use ordinance. Its fundamental nature remains unchanged: Ordinance 454 created a zoning amendment and approved a development agreement. This operative effect brings it squarely within the definition of land use ordinance under section 17-27a-103(19) which states a "land use ordinance means a planning, zoning, development, or subdivision ordinance of the county."

2. *The BOA Lacks Authority to Review the Enactment of a Land Use Ordinance.*

Under LUDMA, the BOA is without power to review the enactment of a land use ordinance. LUDMA defines the jurisdiction of appeal authorities, such as the BOA here, and limits them to deciding purely administrative issues grounded in legislative ordinances. Specifically, these agencies can address: "(a) requests for variances from the terms of the land use ordinances; and (b) appeals from decisions applying the land uses ordinances." Utah Code § 17-27a-701. The enactment by the Council of Ordinance 454 cannot be said to fall within either of these statutory classifications: it is certainly not a "variance" and it is also not "applying the land use ordinances."

Many Utah cases describe what constitutes "a decision applying the land use ordinances." For example, in Xanthos v. Board of Adjustment of Salt Lake City, a property owner appealed a board of adjustment's refusal to grant a variance from the zoning requirements setting the dimensions for side and back yards, and requiring off-street parking and frontage on a public street. 685 P.2d 1032, 1033 (Utah 1984). In that case the Utah Supreme Court explained that a board of adjustment's consideration of whether a variance request met the legal requirements for a variance was an administrative action. See id. at 1034-35. In Patterson v. Utah County Board of Adjustment, a neighboring property owner appealed a board of adjustment's decision granting a special exception permit to build a private airstrip. 893 P.2d 602, 603 (Utah Ct. App. 1995). The court observed that the board there had the authority to "hear and decide special exceptions based on the standards contained in the zoning ordinance." Id. at 604. In Caster v. West Valley City, a property owner challenged a zoning administrator's interpretation of a zoning ordinance. 2001 UT App. 212, ¶ 3, 29 P.3d 22, 23. The court explained that an interpretation of a zoning ordinance is an administrative decision applying zoning ordinances. See id. ¶¶ 4-5. These cases

illustrate that a variance, a special exception and a zoning interpretation are types of matters within a board of adjustment's jurisdiction and all constitute decisions applying or interpreting an ordinance.

In contrast, the Utah Supreme Court has said that the "enactment of zoning policies . . . cannot be delegated to other governmental bodies." Bradley v. Payson City Corp., 2003 UT 16, ¶ 13, 70 P.3d 47, 51. This principle was best explained in Sandy City v. Salt Lake County, 827 P.2d 212, 219, 220 (Utah 1992). There, the court held that boards of adjustment are "powerless to act on questions of zoning or rezoning. . . . Boards of adjustment can tailor a zoning or rezoning ordinance to specific, unforeseen circumstances, but they lack the authority to determine zoning classifications of their own accord." Id. Consistent with the limits expressed in Bradley and Sandy City, there is no Utah case which holds that an appeal from an enactment of a zoning ordinance can be, much less must first be, heard by a board of adjustment. In sum, because Ordinance 454 is a land use ordinance, and because the BOA is without authority to review the enactment of such an ordinance, this court should deny Plaintiffs' cross motion for summary judgment seeking to force review before the BOA.

B. The County Council Exercised Legislative Discretion in Enacting Ordinance 454.

Plaintiffs argue that enactment of Ordinance 454 must be reviewed under the less deferential "substantial evidence" test. Cloudrock contends that the enactment of Ordinance 454 was a legislative act which under LUDMA requires this court to apply the highly deferential reasonably debatable standard of review. Utah Code § 17-27a-801(3)(b). Cloudrock's position is correct because: (1) rezoning is fundamentally a legislative act; and (2) persuasive authority from other jurisdictions confirms that creation of a PUD is a legislative act.

1. Rezoning is Fundamentally a Legislative Act.

Ordinance 454 is a legislative action because it amended the zoning which applies to a large piece of land from range and grazing to a specific PUD zoning district. Enactment of a zoning amendment is fundamentally a legislative act. Bradley, 2003 UT 16, ¶ 13, 70 P.3d at 51. In Bradley, the Utah Supreme Court explained that "the exercise of zoning power is a legislative function." Id. ¶ 12. "The wisdom of the zoning plan, its necessity, the nature and boundaries of the district to be zoned are matters which lie solely within that discretion." Id. A Utah court will "avoid substituting its judgment" for that of the elected body which enacts a zoning ordinance. Id.

The County amended the zoning district that applied to Cloudrock's property by enacting Ordinance 454. The County's 2000 LUC identifies nine residential zoning districts, of which a PUD zoning district is one. See 2000 LUC Art.III.A. The County Council creates a PUD zoning district by amending the then in effect zoning districts. See 2000 LUC Art.III.R.1 and 3. When the County Council enacted Ordinance 454, it expressly amended the zoning district that applies to Cloudrock's property and specified which uses are allowed therein. Many recent Utah cases confirm that the amendment of a zoning district constitutes a legislative act.

In Bradley, certain landowners applied to rezone their property from single family residential to multiple family dwellings. 2003 UT 16, ¶ 3, 70 P.3d at 49. The city denied their request and they appealed. See id. ¶ 1. The court upheld the city's decision, stating that, "[t]here is no dispute in this case that the enactment and amendment of zoning ordinances is fundamentally a legislative act. The political nature of the decision making process underlying municipal zoning demands that the power to make such decisions be vested in persons who are publicly accountable for their choices." Id. ¶ 11, 70 P.3d at 51. Accordingly, the court refused to disturb the legislative body's action.

In Harmon City, Inc. v. Draper City, a landowner applied for a rezoning of its property from residential to commercial to allow for a grocery store. 2000 UT App. 31, ¶¶ 2-3, 997 P.2d 321, 322-23. Draper City denied the application and the landowner sued. The landowner argued on appeal that the rezoning decision must be supported by substantial evidence on the record, and that the decision not to rezone lacked that supporting evidence. Id. ¶ 6, 997 P.2d at 323. The court stated "establishing zoning classifications reflects a legislative policy decision with which courts will not interfere except in the most extreme cases." Id. ¶ 18, 997 P.2d at 326. The court then concluded that because the decision to rezone was a legislative action, it is to be reviewed under the reasonably debatable standard, not the less deferential substantial evidence standard. Id. ¶ 25, 997 P.2d at 328; see Tolman v. Logan City, 2007 UT App. 260, ¶¶ 18-19, 167 P.3d 489, 499 (applying reasonably debatable standard of review to denial of rezoning); Smith Investment Co. v. Sandy City, 958 P.2d 245, 251, n.6 (Utah Ct. App. 1998) ("rezonings in Utah are characterized as legislative").

Ordinance 454 effected a rezoning of the property and that decision, under the above authorities, was legislative.

Plaintiffs argue that rezoning is not a legislative act and rely upon four referendum cases for that proposition. (Pls.' Cross Mot. S.J. at 41 and 45.) See Bird v. Sorenson, 394 P.2d 808 (Utah 1964); Wilson v. Manning, 657 P.2d 251 (Utah 1982); Citizen's Awareness Now v. Marakis, 873 P.2d 1117 (Utah 1994); Low v. City of Monticello, 2004 UT 90, 103 P.3d 130. However, these four cases are inapplicable here because they are referendum cases that were all decided before the enactment of LUDMA and none of them address the standard of review for legislative enactments.

A relatively recent case confirms that Bird, at least, is not applicable to determining standards of review. In Smith Investment Co., certain city residents facially challenged the

constitutionality of a zoning ordinance. 958 P.2d at 251. In discussing the court's strong reluctance to proclaim a legislative action unconstitutional, it stated in a footnote that

> A city council acts within its legislative function when passing a zoning or rezoning ordinance. . . . (In Bird v. Sorenson, 394 P.2d 808 (1964), the Supreme court of Utah termed rezoning 'administrative' for purposes of holding them to be unfit subjects for referendum. For all other purposes, however, rezonings in Utah are characterized as legislative.).

Id. at 251, n.6 (emphasis added). This same distinction is equally applicable to Wilson, Marakis, and Low.

Bird, Wilson, Low and Marakis may be helpful in applying the state's referendum statute; these cases, however, do not overcome the very clear and more recent pronouncements in Bradley and Tolman that a rezoning constitutes a legislative act. Bradley, 2003 UT 16, ¶ 13, 70 P.3d at 51; Tolman, 2007 UT App 260, ¶ 14, 167 P.3d at 493-94.

Plaintiffs also incorrectly assert that a case known as Springville Citizens is controlling legal precedent that establishes that the creation of a PUD is an administrative act. (Pls.' Cross Mot. S.J. at 45-46.) In Springville Citizens the Utah Supreme Court did discuss the substantial evidence standard of review in concluding that Springville City's enactment of a PUD was not arbitrary or capricious. Springville Citizens for a Better Community v. City of Springville, 1999 UT 25, ¶ 25, 979 P.2d 332. The failure in that case, however, to answer whether a PUD is a legislative or administrative act was not intentional. In fact, the Utah Supreme Court clarified in Bradley that "[t]he absence of an acknowledgment of the distinction between legislative and administrative decisions in Springville Citizens stemmed solely from the fact that the standard of review was not a contested issue in that case." Bradley, 2003 UT 16, ¶ 23, 70 P.3d at 54.

In the final analysis, Springville Citizens was not a case that answered whether a PUD is

an administrative action.[7] What we do know about Springville Citizens is that it was a case that was decided on the issue of illegality and did not provide a holding on whether a PUD is administrative or legislative. Interestingly, the neighbors who challenged the PUD in Springville Citizens appealed their case directly to district court, not to the board of adjustment. See id. at ¶ 32, 979 P.3d at 338. This fact would suggest that the PUD enactment was accepted as a legislative enactment by both the district court and Utah Supreme Court. Nevertheless, the more recent Bradley case confirms that the reason the legislative versus administrative distinction is absent from Springville Citizens is because that was not the determinative issue. Bradley, 2003 UT 16, ¶ 23, 70 P.3d at 54.

Accordingly, Springville Citizens does not stand for the proposition claimed by Plaintiffs. The better approach is to apply the many recent cases which confirm that an ordinance which amends a zoning district is a legislative enactment that is entitled the highest deference. In Grand County, PUD is a rezoning of property according to the terms of the County's ordinances. See 2000 LUC Art.III.R.3. Thus, under Bradley and Tolman, the only correct conclusion is that the Council acted legislatively when it passed Ordinance 454.

2. *Other Jurisdictions Have Concluded that the Creation of a PUD is a Legislative Act.*

A majority of courts in other states have concluded where PUD accomplishes rezoning, it is a legislative act. See Todd Mart, Inc. v. Town Bd of Webster, 49 A.D.2d 12, 19-20 (N.Y. App. Div. 1975). In establishing a PUD zoning district, a legislative body must consider the "physical, social, economic, and public policy factors in the review process." 6 Home Owners

[7] Before the Utah Supreme Court explained in Bradley the failure of Springville Citizens' to make an administrative and legislative distinction, the Utah Court of Appeals had speculated in Harmon City, that the PUD in Springville Citizens could reasonably be considered a legislative decision. See Harmon City, Inc. v. Draper City. 2000 UT App. 31, ¶ 23 n. 14, 997 P.2d at 327 and dissent at ¶ 47.

Assns. & PUDs (MB) § 3.01 (2006).

The purpose of a PUD in Grand County, according to the 2000 LUC, is to provide "flexibility to accommodate mixed-use, non-traditional and innovative developments and renewal." 2000 LUC Art.III.R.1. Each PUD creates a new and unique zoning classification to fit the needs of the particular development. 2000 LUC Art.IIIR.4. Furthermore, as in Todd Mart, Inc., it is a floating zone that "hovers without definite boundaries until" the Council affixes it to a definite area. 49 A.D.2d at 16.

Cases from other jurisdictions confirm that a PUD accomplishes rezoning and is therefore a legislative act. See State v. Council of the City of South Euclid, 855 N.E.2d 811, 813-14 (Ohio 2006); State v. Jefferson County, 964 S.W.2d 531, 536-37 (Mo. Ct. App. 1998); Sheridan Planning Assn. v. Bd. of Sheridan County Comm'rs, 924 P.2d 988, 990 (Wyo. 1996); see also 6 Home Owners Assocs. & PUDs (MB) § 3.04(a). In Jefferson County, a county commission approved a PUD and site plan for a casino development. 964 S.W.2d at 534. Certain residents appealed. In determining the proper standard of review, the court addressed whether PUD approval constitutes a legislative action. The court determined that because PUD approval was a rezoning, it was a legislative act. Id. at 536. Furthermore, like Plaintiffs here, the residents in Jefferson County attempted to parse the rezoning ordinance into its individual elements and argue that at least the site plan approval within the ordinance should trigger an administrative standard of review. Id. The court rejected that argument because the site plan "is an integral part of the regulation because the zoning classification is adopted based on the improvements which the development plan describes." Id. at 537.

In sum, this court should apply the reasonably debatable standard applicable to legislative acts in reviewing Ordinance 454. The County Council exercised its legislative authority in amending the zoning district that would apply to Cloudrock's lands and in approving the PUD

described in Ordinance 454. Utah case law confirms that to amend and rezone a zoning district may only be performed by legislative bodies exercising legislative authority and case law from other jurisdictions confirms that the creation of a PUD a legislative act.

C. The County's Enactment of Ordinance 454 Was Not Arbitrary, Capricious or Illegal.

Plaintiffs assert the Council acted arbitrarily, capriciously and illegally when it enacted Ordinance 454. (Pls.' Mot. Cross S.J. at 46-48.) Under LUDMA, this court must presume a land use ordinance is valid and determine only whether it is arbitrary, capricious or illegal. Utah Code § 17-27a-801(3). A legislative land use ordinance is not "arbitrary" or "capricious" if it is reasonably debatable that the decision could promote the general welfare. Utah Code § 17-27a-801(3)(b); Bradley, 2003 UT 16, ¶ 14, 70 P.3d at 52. A land use decision is not "illegal" if it complies with the applicable statutes and/or ordinances. See Utah Code § 17-27a-801(3)(d); Springville Citizens, 1999 UT 25, ¶ 31, 979 P.2d at 338. Even if a decision or ordinance did not comply with every legal requirement, Plaintiffs must show that "that they were prejudiced by the [county's] noncompliance with its ordinances or, in other words, how, if at all, the [county's] decision would have been different and what relief, if any, they are entitled to as a result." Springville Citizens, 1999 UT 25, ¶ 31, 979 P.2d at 338.

The Council's enactment of Ordinance 454 was not arbitrary, capricious or illegal.

1. It is "Reasonably Debatable" that Ordinance 454 Promotes the General Welfare.

Plaintiffs do not assert that there can be no reasonable debate as to whether Ordinance 454 promotes the general welfare. Instead, Plaintiffs assert that Ordinance 454 is arbitrary and capricious because it is not supported by substantial evidence in the record. (Pls.' Cross Mot. S.J. at 46-47.) However, this is the wrong standard of review. Under LUDMA, a legislative

land use decision is not arbitrary and capricious if it is reasonably debatable that the decision could promote the general welfare. Only an administrative land use decision, which Ordinance 454 is not, must be supported by substantial evidence in the record. Utah Code § 17-27a-801(3)(b), (c). Plaintiffs have not even attempted to meet LUDMA's requirement that a person challenging a legislative decision show that the decision is not "reasonably debatable." Id. § 17-27a-801(3)(b). Therefore, this court should find that Ordinance 454 is not arbitrary and capricious under LUDMA and Bradley.

2. *Ordinance 454 is not Illegal.*

Under LUDMA, a land use decision is illegal if it does not comply with applicable ordinances, statutes and laws. Utah Code § 17-27a-801(3). However, a showing of illegality is not enough to overturn Ordinance 454. Rather, Plaintiffs must also show that the illegality prejudiced them; "in other words, how, if at all, the [county's] decision would have been different and what relief, if any, they are entitled to as a result." Springville Citizens, 1999 UT 25, ¶ 31, 979 P.2d at 338.

In its Motion for Summary Judgment, pages 14-17, Cloudrock set forth the mandatory requirements for PUD approval which Grand County established for itself. Those requirements are that the Council make certain required findings of fact, the Council follow the process for zoning map and text amendment, the Council require a site plan, and that the PUD not exceed the maximum density of the underlying zoning district. Plaintiffs have not disputed that these are the appropriate requirements. (See Pls.' Cross Mot. S.J. at 46-48.)

Plaintiffs respond in two ways: first, they argue that this court cannot decide whether Ordinance 454 is valid because it lacks a certified record from the County (Pls.' Cross Mot. S.J. at 4-5.); and second, they assert illegality in response to Cloudrock's Statement of Undisputed Facts—after admitting almost all facts asserted. (See, e.g., id. Response to Cloudrock's

Undisputed Facts ¶¶ 24, 26, 29, 30, 31, 33, 34, 38.) Neither argument is availing here.

a. No Record is Required to Determine Validity of Legislative Decision.

Plaintiffs argue that this court cannot determine whether Ordinance 454 is valid because it lacks an administrative record. (Pls.' Cross Mot. S.J. at 4.) LUDMA, however, does not require the creation of a record for an appeal of a legislative act. See id. § 17-27a-801(7)(a). Rather, an administrative record is created in those cases where a court is reviewing an appeal from a decision of a "land use authority" or "appeal authority." See id. § 17-27a-103(2), (17). LUDMA further explains that the standard of review for reviewing the decision of a land use authority or appeal authority is the substantial evidence standard, or rather whether the decision is supported by "substantial evidence in the record." See id. § 17-27a-801(3)(c).

The Council acted within its legislative authority when it passed Ordinance 454 and LUDMA contains no requirement that a "legislative body" compile a record when its legislative enactments are appealed. See id. § 17-27a-103(20). Moreover, if there is no record, LUDMA expressly provides that "the court may call witnesses and take evidence." See id. § 17-27a-801(8)(b). There is no part of LUDMA that excuses Plaintiff for failing to respond to Cloudrock's motion for a declaration from this court that Ordinance 454 is legal. See Jefferson County, 964 S.W.2d at 536 ("[W]hen reviewing legislative actions, the scope of review is not limited to the record presented to the legislative body.").

An appeal of a legislative act can be likened to a challenge to a statute. The legislature does not submit a written record to support a statute if a party challenges that statute. Rather, the party challenging the statute is obligated to identify the illegality and support that argument with facts and law. In this case, it is Plaintiffs who bear the burden to prove illegality and under LUDMA they cannot avoid their burden by claiming a record must first be submitted.

b. Responses to Plaintiffs' Specific Allegations of Illegality.

Plaintiffs allege that both the 2002 Resolution and Ordinance 454 are illegal. These arguments are asserted sporadically and are contained almost entirely in their response to Cloudrock's statement of facts. First, Plaintiffs cannot challenge the 2002 Resolution here. See Utah Code § 17-27-1001 (2002), a copy of which is attached hereto as **Exhibit A**. Ordinance 454 approved amendments to the Original PUD and Original Development Agreement; it did not amend all portions of the Original PUD and Development Agreement. Plaintiffs cannot challenge those elements of the Original PUD and Development Agreement not altered by Ordinance 454. See McQuillin, Eugene, The Law of Municipal Corps. §§ 21.18, 21.19; 62 C.J.S. Municipal Corps. § 95; 1998 WL 712351 (Conn. Super.). "An ordinance . . . which in fact amends only one section, and makes no reference to the subjects of the other sections of the former ordinance, does not repeal those sections by implication, where there is no repugnancy between the amended section and those sections which are left unamended." McQuillin § 21.19. Thus, this court lacks subject matter jurisdiction to hear the Plaintiffs' challenge to the Original PUD, Original Development Agreement, the Stormwater Management Plan, and the overall density of the Cloudrock PUD.

So far as Cloudrock can tell[8], Plaintiffs' seem to assert that Ordinance 454 is invalid because the notice and hearing of the PUD zoning amendment did not include the phrase "zoning map amendment" and because they claim a map was not attached to the submission of the PUD amendment. Both arguments fail.

Plaintiffs argue the County gave inadequate notice of the Amended PUD rezoning

[8] Plaintiffs allege that "upon production of the Record and full briefing and argument" they will identify illegalities. (Pls.' Cross Mot. S.J. at 47.) Plaintiffs cite no applicable authority to support the contention that they can defer presenting argument on why a legislative act is illegal until a record is produced.

because notice, and subsequent public hearings, lacked the phrase "zoning map amendment." (Pls.' Cross Mot. S.J., Response to Cloudrock's Undisputed Facts ¶ 26, 29, 33, 34, Plaintiffs' Statement of Undisputed Facts ¶ 44.) Under the 2000 LUC, Article III.R.3, PUD approval must follow the procedure of Article VI.B., zoning map and text amendment. Under Article VI.B, the County must give notice prior to both the planning commission and county council hearings and such notice must include the date, time and "nature of the subject to be considered." 2000 LUC Arts.VI.B.3.a and VI.B.4.a.

It appears that Plaintiffs argue that the County's notice did not adequately give notice of the "nature of the subject to be considered." The 2000 LUC does not require that notice state "zoning map amendment" either for a PUD rezoning or a zoning map amendment. The County reasonably interpreted this provision of its code to require that notice specifically refer to the subject of review—the amendment to the PUD zoning. A review of the 2000 LUC shows that every action to create a PUD effects a rezone and an amendment to the zoning map. See 2000 LUC, Art. III.R.3 and 4.

In Low v. City of Monticello, the court defined "adequate notice" for county ordinances as "notice reasonably calculated to apprise a person of an action, proceeding, or motion. Notice sufficient to permit an objection or defense." 2004 UT 90, ¶ 15, 103 P.3d at 134; see Hatch v. Boulder Town Council, 2001 UT App. 55, ¶ 12, 21 P.2d 245, 249. There can be no doubt that notice of the Amended PUD rezoning gave adequate notice to those wishing to make an objection. Even if such notice somehow failed the adequacy test, Plaintiffs cannot show how this claimed illegality prejudiced them or "how, if at all, the [county's] decision would have been different and what relief, if any, they are entitled to as a result." Springville Citizens, 1999 UT 25, ¶ 31, 979 P.2d at 338. Plaintiffs appeared at the public hearings, commented and are now challenging this action. Plaintiffs cannot show prejudice by any alleged illegality in the notice.

Plaintiffs also argue that Ordinance 454 is invalid because an amended zoning map was not presented to the Council. (Pls.' Cross Mot. S.J., Response to Cloudrock's Undisputed Facts ¶ 34.) Under LUDMA, the planning commission recommends a zoning map that represents the planning commission's recommendation on a zoning ordinance. Utah Code § 17-27a-502 and -503; see Hatch, 2001 UT App. 55, 21 P.3d 245. Under the 2000 LUC, Article VI.B, a request for a zoning map amendment must include a boundary survey of the land to be rezoned. If the zoning ordinance is approved, "such changes or amendments shall be made promptly after official adoption of the change or amendment as provided for herein. The County Planner shall be responsible for the physical updating and the amendment of the official zoning map." 2000 LUC Art.III.B.2.

In submitting the request for PUD amendment, Cloudrock submitted a map showing the land to be rezoned. (See Exhibit C to Cloudrock's Supp. S.J. Memo.) By Plaintiffs' own admission, they obtained a copy of the maps included with Cloudrock's submission and the first page of those maps shows the boundaries of the PUD and is attached as Exhibit D to the Declaration of Barbara A. Morra. (See Plaintiffs Statement of Undisputed Facts No. 46, Plaintiffs' Mem. Supp. S.J.) The boundaries shown on the Sheet 1 attached to the Amended Development Agreement are the same as those shown the amendment to official zoning map which the County Planner did eventually update and dated December 26, 2007. (A copy of the amended official zoning map is attached to Cloudrock's Supp. S.J. Memo. as Exhibit V.)

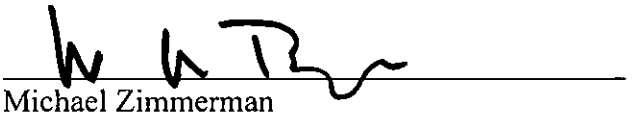
Moreover, Plaintiffs fail to demonstrate how any purported illegality regarding the ultimate creation of the zoning map prejudiced them. Plaintiff obtained a copy of the boundary map of the PUD and are well aware of its location within Grand County. Plaintiffs cannot demonstrate that any delay in the update of the official zoning map prejudiced them in any way.

IV. CONCLUSION

For all of the foregoing reasons, this court should conclude that the enactment of Ordinance 454 was legal and not arbitrary or capricious. This court should further conclude that the BOA lacks jurisdiction to review the enactment of Ordinance 454. Accordingly, this court should ***grant*** Cloudrock's motion for summary judgment and ***deny*** Plaintiffs cross motion for summary judgment.

RESPECTFULLY SUBMITTED this 20th day of February, 2008.

SNELL & WILMER



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CERTIFICATE OF SERVICE

I hereby certify that on the 20th day of February, 2008, I caused to be mailed, first-class postage prepaid, a true and correct copy of the foregoing to the following:

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UTAH CODE, 1953
TITLE 17. COUNTIES
CHAPTER 27. COUNTY LAND USE DEVELOPMENT AND MANAGEMENT ACT
PART 10. APPEALS AND ENFORCEMENT

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17-27-1001 Appeals.

(1) No person may challenge in district court a county's land use decisions made under this chapter or under the regulation made under authority of this chapter until that person has exhausted all administrative remedies.

(2) (a) Any person adversely affected by any decision made in the exercise of the provisions of this chapter may file a petition for review of the decision with the district court within 30 days after the local decision is rendered.

(b) (i) The time under Subsection (2)(a) to file a petition is tolled from the date a property owner files a request for arbitration of a constitutional taking issue with the private property ombudsman under Section 63-34-13 until 30 days after:

(A) the arbitrator issues a final award; or

(B) the private property ombudsman issues a written statement under Subsection 63-34-13(4)(b) declining to arbitrate or to appoint an arbitrator.

(ii) A tolling under Subsection (2)(b)(i) operates only as to the specific constitutional taking issues that are the subject of the request for arbitration filed with the private property ombudsman by a property owner.

(iii) A request for arbitration filed with the private property ombudsman after the time under Subsection (2)(a) to file a petition has expired does not affect the time to file a petition.

(3) (a) The courts shall:

(i) presume that land use decisions and regulations are valid; and

(ii) determine only whether or not the decision is arbitrary, capricious, or illegal.

(b) A determination of illegality requires a determination that the decision violates a statute, ordinance, or existing law.

History: C. 1953, **17-27-1001**, enacted by L. 1991, ch. 235, § 106; 1996, ch. 79, § 20; 1999, ch. 291, § 6; 2001, ch. 241, § 45.

NOTES, REFERENCES, AND ANNOTATIONS

Amendment Notes. --The 1999 amendment, effective May 3, 1999, added Subsection (2)(b), redesignating Subsection (2) as (2)(a).

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The 2001 amendment, effective April 30, 2001, added Subsection (3)(b) and made related designation changes.

NOTES TO DECISIONS
ANALYSIS

Applicability.
Exhaustion of administrative remedies.
Violation of zoning resolution.

Applicability.

Exhaustion requirement of Subsection (1) did not apply to action in which plaintiffs claimed that defendants had violated zoning ordinances, building standards, and a conditional use permit, as this was not a challenge of a county's land use decision. Culbertson v. Bd. of County Comm'rs, 2001 UT 108, 44 P.3d 642.

Exhaustion of administrative remedies.

Plaintiff seeking to enjoin construction of a trailer park was required to exhaust his administrative remedies before an action for injunctive relief could be maintained. Lund v. Cottonwood Meadows Co., 15 Utah 2d 305, 392 P.2d 40 (1964).

A party must exhaust administrative remedies before seeking judicial review of the denial of a building permit. Hatch v. Utah County Planning Dep't, 685 P.2d 550 (Utah 1984).

Plaintiff aggrieved by a decision of the county commission applying the zoning ordinance was required to appeal that decision to the board of adjustment; plaintiff could not initiate mandamus proceedings under § 17-27-1002 against the commission for its alleged violation of the ordinance. Bennion v. Sundance Dev. Corp., 897 P.2d 1232 (Utah Ct. App. 1995).

Violation of zoning resolution.

Landowners under former § 17-27-23 had a separate cause of action in the courts when a violation of a zoning resolution was charged; but where the alleged violation of the ordinance arose from the administration of the zoning ordinance by an administrative agency, appeal from the administrative ruling should have been taken to the proper administrative tribunal, or a suit should have been commenced in the courts within ninety days. Lund v. Cottonwood Meadows Co., 15 Utah 2d 305, 392 P.2d 40 (1964) (decided under former § 17-27- 15).

U.C.A. 1953 § **17-27-1001**

UT ST § **17-27-1001**

END OF DOCUMENT

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